

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1664
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-322, Arizona Revised Statutes, is amended to
3 read:

4 16-322. Number of signatures required on nomination petitions

5 A. Nomination petitions shall be signed by a number of qualified
6 signers equal to:

7 1. If for a candidate for the office of United States senator or
8 for a state office, excepting members of the legislature and superior
9 court judges, at least one-fourth of one percent but not more than ten
10 percent of the total number of qualified signers in ~~the~~ THIS state.

11 2. If for a candidate for the office of representative in Congress,
12 at least one-half of one percent but not more than ten percent of the
13 total number of qualified signers in the district from which the
14 representative shall be elected, except that if for a candidate for a
15 special election to fill a vacancy in the office of representative in
16 Congress, at least one-fourth of one percent but not more than ten percent
17 of the total number of qualified signers in the district from which the
18 representative shall be elected.

19 3. If for a candidate for the office of member of the legislature,
20 at least one-half of one percent but not more than three percent of the
21 total number of qualified signers in the district from which the member of
22 the legislature may be elected.

23 4. If for a candidate for a county office or superior court judge,
24 at least one percent but not more than ten percent of the total number of
25 qualified signers in the county or district, except that if for a
26 candidate from a county with a population of two hundred thousand persons
27 or more, at least one-fourth of one percent but not more than ten percent
28 of the total number of qualified signers in the county or district.

1 5. If for a candidate for a community college district, at least
2 one-quarter of one percent but not more than ten percent of the total
3 voter registration in the precinct as established pursuant to section
4 15-1441. Notwithstanding the total voter registration in the community
5 college district, the maximum number of signatures required by this
6 paragraph is one thousand.

7 6. If for a candidate for county precinct committeeman, at least
8 two percent but not more than ten percent of the party voter registration
9 in the precinct or ten signatures, whichever is less.

10 7. ~~If for a candidate for justice of the peace or constable~~ In a
11 county with a population of one million persons or more: ~~;~~

12 (a) IF FOR A CANDIDATE FOR JUSTICE OF THE PEACE, at least one
13 percent but not more than ten percent of the number of qualified signers
14 in the precinct.

15 (b) IF FOR A CANDIDATE FOR CONSTABLE, AT LEAST ~~[ONE THOUSAND~~
16 ~~SIGNATURES OR AT LEAST]~~ ONE PERCENT OF THE NUMBER OF QUALIFIED SIGNERS IN
17 THE JUSTICE PRECINCT ~~[OR ONE THOUSAND SIGNATURES]~~, WHICHEVER IS LESS~~[, BUT~~
18 ~~NOT MORE THAN TEN PERCENT OF THE NUMBER OF QUALIFIED SIGNERS IN THE~~
19 ~~JUSTICE PRECINCT]~~.

20 8. If for a candidate for justice of the peace or constable in a
21 county with a population of less than one million persons, at least one
22 percent but not more than ten percent of the number of qualified signers
23 in the precinct or three hundred signatures, whichever is less.

24 9. If for a candidate for mayor or other office nominated by a city
25 at large, at least five percent and not more than ten percent of the
26 designated party vote in the city, except that a city that chooses to hold
27 nonpartisan elections may provide by ordinance that the minimum number of
28 signatures required for the candidate be one thousand signatures or five
29 percent of the vote in the city, whichever is less, but not more than ten
30 percent of the vote in the city.

31 10. If for an office nominated by ward, precinct or other district
32 of a city, at least five percent and not more than ten percent of the
33 designated party vote in the ward, precinct or other district, except that
34 a city that chooses to hold nonpartisan elections may provide by ordinance
35 that the minimum number of signatures required for the candidate be two
36 hundred fifty signatures or five percent of the vote in the district,
37 whichever is less, but not more than ten percent of the vote in the
38 district.

39 11. If for a candidate for an office nominated by a town at large,
40 by a number of qualified electors who are qualified to vote for the
41 candidate whose nomination petition they are signing equal to at least
42 five percent and not more than ten percent of the vote in the town, except
43 that a town that chooses to hold nonpartisan elections may provide by
44 ordinance that the minimum number of signatures required for the candidate
45 be one thousand signatures or five percent of the vote in the town,
46 whichever is less, but not more than ten percent of the vote in the town.

1 12. If for a candidate for a governing board of a school district
2 or a career technical education district, at least one-half of one percent
3 of the total voter registration in the school district or career technical
4 education district if the board members are elected at large or one
5 percent of the total voter registration in the single member district if
6 governing board members are elected from single member districts or
7 one-half of one percent of the total voter registration in the single
8 member district if career technical education district board members are
9 elected from single member districts. Notwithstanding the total voter
10 registration in the school district, career technical education district
11 or single member district of the school district or career technical
12 education district, the maximum number of signatures required by this
13 paragraph is four hundred.

14 13. If for a candidate for a governing body of a special district
15 as described in title 48, at least one-half of one percent of the vote in
16 the special district but not more than two hundred fifty and not fewer
17 than five signatures.

18 B. The basis of percentage in each instance referred to in
19 subsection A of this section, except in cities, towns and school
20 districts, shall be the number of qualified signers as determined from the
21 voter registration totals as reported pursuant to section 16-168,
22 subsection H on January 2 of the year in which the general election is
23 held. In cities, the basis of percentage shall be the vote of the party
24 for mayor at the last preceding election at which a mayor was elected. In
25 towns, the basis of percentage shall be the highest vote cast for an
26 elected official of the town at the last preceding election at which an
27 official of the town was elected. In school districts or career technical
28 education districts, the basis of percentage shall be the total number of
29 active registered voters in the school district or career technical
30 education district or single member district, whichever applies. The
31 total number of active registered voters for school districts or career
32 technical education districts shall be calculated using the periodic
33 reports prepared by the county recorder pursuant to section 16-168,
34 subsection H. The count that is reported on January 2 of the year in
35 which the general election is held shall be the basis for the calculation
36 of total voter registration for school districts or career technical
37 education districts.

38 C. In primary elections the signature requirement for party
39 nominees, other than nominees of the parties entitled to continued
40 representation pursuant to section 16-804, is at least one-tenth of one
41 percent of the total vote for the winning candidate or candidates for
42 governor or presidential electors at the last general election within the
43 district. Signatures must be obtained from qualified electors who are
44 qualified to vote for the candidate whose nomination petition they are
45 signing.

46 D. If new boundaries for congressional districts or legislative
47 districts are established and effective subsequent to January 2 of the

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1 year of a general election and before the first date for filing of
2 nomination petitions, the basis for determining the required number of
3 nomination petition signatures is the number of qualified signers in the
4 elective office or district that was effective on January 2 of the year of
5 a general election. If new boundaries for supervisorial districts,
6 justice precincts or election precincts are adopted after January 2 of the
7 year of a general election and before the last date for filing of
8 nomination petitions for the elective office, district or precinct, the
9 basis for determining the required number of nomination petition
10 signatures is the number of qualified signers in the elective office,
11 district or precinct on the effective date of the new district or
12 precinct.

13 Enroll and engross to conform
14 Amend title to conform

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